

**IN THE COURT OF THE XI METROPOLITAN MAGISTRATE
ESPLANADE, MUMBAI
C.C. NO. 1847/SS/2026**

Ritesh Ahluwalia

... *COMPLAINANT*

VERSUS

Devraj Malkani

... *ACCUSED*

**APPLICATION UNDER SECTION 145(2) OF THE NEGOTIABLE
INSTRUMENTS ACT, 1881**

1. The Complainant has filed his evidence on affidavit under Section 145(1) of the Negotiable Instruments Act, 1881, and has tendered Ex. C-1 to Ex. C-6 in evidence thereunder.
2. The Accused seeks to examine the Complainant on the said affidavit, particularly regarding the discrepancy between the figures and words on the cheque (Ex. C-2) and the interest computation appearing in the ledger (Ex. C-4), which records interest on an 18% per annum basis against the 15% per annum rate recorded in the Loan Agreement (Ex. C-1) itself.
3. The Accused further seeks to question the Complainant on the circumstances of presentation of the cheque and the service of the statutory notice, matters going to the root of the offence alleged.
4. It is in the interest of justice and for effective adjudication of the matter that the Accused be permitted to cross-examine the Complainant on the said affidavit and the documents produced therewith.

PRAYER

- a. Permit the Accused to examine the Complainant on his evidence affidavit.

VERIFICATION

I, the Accused above named, verify that the contents of this application are true.

Verified at Mumbai on this the 30th day of December, 2025.

Accused

(Devraj Malkani)

Ms. Farida Contractor, Advocate for the Accused

Enrolment No. MAH/4108/2013